is far more dangerous for individuals as compared with access to this information by private firms. Second, a law like GDPR makes assumptions about UK or EU state capacity. To favour creating a new privacy regulator that will coerce private firms on the question of privacy, without the checks and balances prevalent in the EU, would work out poorly in India. [1] In the Indian discourse, we have rapidly run ahead to proposing criminal sanctions, in the hands of the proposed 'Data Protection Authority'.

The interesting policy question on privacy in India is not about how to transplant UK common law or the EU's GDPR into India. The prime question in the Indian privacy debate is about reining in intrusions into the privacy of individuals by the Indian state. This requires understanding the existing surveillance system and bringing it up to the qualities of state surveillance seen in healthy democracies. [2] Alongside this, we need to ask: *What is a modest and minimal scale of coercion of private firms, to increase the privacy of individuals, which are feasible under Indian levels of state capacity, which deliver the bulk of the gains?*

There is a tremendous prestige associated with the successful institutions of the first world. However, we should not be the sorcerer's apprentice, we should not engage in what the economist Lant Pritchett calls 'isomorphic mimicry', we should not mechanically copy the international experience.

It is always interesting to review international experience. But the core thinking about public policy in India must always be grounded in first-principles reasoning that is deeply grounded in the Indian institutional context.

The policy thinker needs to envision how component X will work, in the context of all the other elements of the Indian landscape that are left intact. The policy analysis should envision how many policy alternatives will work —when placed in the Indian landscape—and then propose the possibilities that will work out best.